

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
FRANKLIN DANGELO a/k/a JOSE BURGOS,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. CRISTIANO (Tax Registry
No. unknown at this time),**

Defendants.
-----X

SUMMONS

**Index No.:
NYC #: 2017PI011903**

**Plaintiff designates Bronx
County as the place of trial.
The basis of the venue is
locus of occurrence: County
of Bronx.**

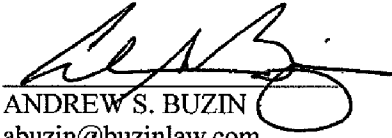
To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**Dated: New York, New York
January 2, 2018**

**Yours, etc.
BUZIN LAW, P.C.
Attorneys for Plaintiff
111 Broadway, Room 1204
New York, NY 10006
Tel: (646) 470-4878
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By:


ANDREW S. BUZIN
abuzin@buzinlaw.com

Defendant's Address:

**Corporation Counsel of the City of New York
Attorneys for the City of New York and The
New York City Police Department
100 Church Street
New York, NY 10007**

**P.O. Cristiano
New York City Police Department
1 Lefrak City Plaza
Queens, NY 11368**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
FRANKLIN DANIELO a/k/a JOSE BURGOS,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.:
NYC #: 2017PI011903

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. CRISTIANO (Tax Registry
No. unknown at this time),

Defendants.

-----X

Plaintiff, FRANKLIN DANIELO a/k/a JOSE BURGOS, by his attorneys BUZIN LAW,
P.C., as for his Verified Complaint, alleges the following, upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was
and still is a municipal corporation duly organized and existing under the laws of the State of
New York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its
agents, servants and employees operate, maintained and controlled the Police Department of the
City of New York, including all police officers thereof.

3. At all times hereinafter mentioned, Defendant, THE NEW YORK CITY POLICE
DEPARTMENT, was and still is a municipal corporation duly organized and existing under the
laws of the State of New York.

4. At all times hereinafter mentioned, and on or prior to February 24, 2017,
Defendant POLICE OFFICER CRISTIANO (Tax Registry No. unknown at this time)

(“CRISTIANO”) was employed by defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, as a police officer.

5. At all times hereinafter mentioned, defendant, CRISTIANO, was acting within the scope of his employment as a police officer with THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

6. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

7. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by THE NEW YORK CITY POLICE DEPARTMENT.

8. At all times hereinafter mentioned Defendant, THE CITY OF NEW YORK, employed P.O. CRISTIANO, and other police officers.

9. At all relevant times, the individual defendants were acting pursuant to their authority as NEW YORK CITY POLICE DEPARTMENT employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the NEW YORK CITY POLICE DEPARTMENT.

10. The plaintiff, FRANKLIN DANGELO a/k/a JOSE BURGOS (“DANGELO”) was, on February 24, 2017, and at all relevant times, a resident of the County of New York, State of New York, residing at 2407 Seventh Avenue, New York, NY 10030 in the State of New York.

CONDITIONS PRECEDENT

11. On or about April 28, 2017, and within ninety (90) days of the occurrence complained of hereinafter, plaintiff DANGELO duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

12. On October 17, 2017, plaintiff DANGELO entered into a stipulation with the defendants herein to adjourn a hearing pursuant to Section 50-h of the General Municipal Law, and that the plaintiff will notify these defendants within thirty (30) days after he has become available to appear and give testimony at said hearing, at which point these defendants shall have ninety (90) days in which to schedule the hearing. Per this stipulation, the plaintiff is permitted to commence an action against these defendants on the claim before a hearing or physical examination is conducted pursuant to 50-h.

13. This action is commenced within one year and ninety days from the date of occurrence complained of herein and the plaintiff has complied with all conditions precedent applicable to the instant action.

JURISDICTION AND VENUE

14. The plaintiff brings this action in the Supreme Court, State of New York, County of New York, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

15. The plaintiff properly designates New York County as the place of trial. The basis of the venue is the locus of the occurrence.

STATEMENT OF FACTS

16. On or about February 24, 2017, outside of 461 East 185th Street, Bronx, NY 10458, at approximately 10:52 p.m., the plaintiff was a lawful pedestrian.

17. At the above specified time and place, without justification or provocation and without a warrant, officers from THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including P.O. CRISTIANO, were driving down East 185th Street traveling westbound from Washington Avenue towards Park Avenue.

18. At the above specified time and place, without justification or provocation and without a warrant, P.O. CRISTIANO was operating a 2014 Ford police vehicle bearing license plate no. GPV4391.

19. At the above specified time and place, without justification or provocation and without a warrant, P.O. CRISTIANO was operating a 2014 Ford police vehicle bearing license plate no. GPV4391, and did so without markings on that vehicle and while wearing plain clothes.

20. At the above specified time and place, without justification or provocation and without a warrant, P.O. CRISTIANO was operating a 2014 Ford police vehicle bearing license plate no. GPV4391, and did so without any police lights or sirens.

21. At the above specified time and place, without justification or provocation and without a warrant, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO, either intentionally or with the reckless disregard for the safety of others, struck the plaintiff DANGELO with the above-referenced police vehicle such that it caused the plaintiff broken ribs, internal bleeding, a broken foot, and numerous other harms and losses that continue to date.

22. The plaintiff DANGELO has been assaulted, accosted, battered, arrested, confined, unduly restrained, and wrongfully prosecuted.

23. P.O. CRISTIANO, the operator of the vehicle that came into contact with the plaintiff DANGELO, intentionally committed an act of an unreasonable character in disregard of a known or obvious risk that was so great as to make it highly probable that harm would follow and has done so with conscious indifference to the outcome.

24. Further, P.O. CRISTIANO, acted with reckless disregard for the safety of others, such that the officer intentionally committed an act of an unreasonable character in disregard of a known or obvious risk that was so great as to make it highly probable that harm would follow.

25. Members of the Bronx County District Attorney's Office maliciously prosecuted the plaintiff DANGELO.

26. Plaintiff DANGELO was held at St. Barnabas Hospital, the 48th Precinct, and then transferred to Central Booking, where he was held for approximately one day. He was then charged and held at VCBC.

AS AND FOR A FIRST CAUSE OF ACTION

27. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "26," inclusive, as though each were set forth fully at length herein.

28. On February 24, 2017, and thereafter, in the City of New York, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted and battered plaintiff, DANGELO, without any right or grounds thereof.

29. Defendant P.O. CRISTIANO injured and maimed the plaintiff DANGELO such that he was unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest, and never read him his Miranda rights.

30. Plaintiff was caused to strike the ground such that he had to be transported from the scene to Saint Barnabas hospital, where he underwent treatment for a period of four days.

31. Said detention, arrest, imprisonment, assault, and battery were caused by the defendants, their agents, servants and/or employees without probable cause and/or justification.

32. Defendants, through their agents, servants and/or employees, acted in bad faith and without probable cause in committing the aforementioned arrest, detention, imprisonment, assault and battery of plaintiff, DANGELO.

33. Defendants, their agents, servants and/or employees, intended to confine the Plaintiff, DANGELO, in that Plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

34. At the time of his unlawful arrest, detention and imprisonment, plaintiff, DANGELO, had not committed or attempted to commit any illegal act or crime.

35. At the time of plaintiff, DANGELO's unlawful arrest, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned arrest and detention were false and without probable cause.

36. Said false arrest and false imprisonment caused plaintiff, DANGELO, to suffer physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

37. Defendants placed plaintiff DANGELO under arrest, never apprising plaintiff as to why he was being arrested nor the criminal charges they were filing against him.

38. Plaintiff, DANGELO, was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to

deprive plaintiff of his rights as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

39. It is alleged that Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO failed to investigate the facts, and therefore maliciously and intentionally detained, falsely detained, falsely imprisoned, and humiliated plaintiff, DANGELO, in violation of his constitutional rights.

40. Plaintiff, DANGELO, has still not been released from custody.

41. As a direct result of the above defendants' actions, plaintiff, DANGELO, suffered and continues to suffer severe physical injuries, mental anguish, deprivation of liberty and privacy, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

42. Plaintiff, DANGELO, suffered – and continues to suffer -- greatly and was and is physically and emotionally traumatized by this excessive detention and imprisonment.

43. The false criminal arrest and wrongful imprisonment of plaintiff, DANGELO, because of defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

44. As a direct and proximate result of defendants' actions, plaintiff, DANGELO, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

45. As a result of the foregoing, plaintiff, DANGELO, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

46. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “45,” inclusive, as though each were set forth fully at length herein.

47. On February 24, 2017, at approximately 10:52 p.m., while plaintiff, DANGELO, was lawfully outside of 461 East 185th Street, Bronx, NY, in the city of New York, State of New York, he was assaulted and battered by police officers employed by defendant, THE CITY OF NEW YORK, including P.O. CRISTIANO.

48. On February 24, 2017, at approximately 10:52 p.m., while plaintiff, DANGELO, was lawfully outside of 461 East 185th Street, Bronx, NY, in the city of New York, State of New York,, defendant P.O. CRISTIANO, a police officer employed by Defendant, THE CITY OF NEW YORK, intentionally struck plaintiff DANGELO with the police vehicle that he was operating.

49. As a result of the above mentioned unprovoked assault and battery, the plaintiff, DANGELO, was injured, internally and externally, became sick, sore, lame, and disabled, and was caused to suffer and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer pain and discomfort; and was caused to obtain medical care and attention in an attempt to be cured of said injuries.

50. As a result of the foregoing, plaintiff, DANGELO, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

51. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “50,” inclusive, as though each were set forth fully at length herein.

52. The actions of defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiff, DANGELO’s civil rights.

53. Defendants deprived plaintiff, DANGELO, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

54. Defendants violated the civil and constitutional rights of plaintiff, DANGELO, as set forth in the Constitution of the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

55. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

56. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

57. Defendant, THE CITY OF NEW YORK, and its Police Department, has failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

58. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above described policy and practices through its deliberate indifference to the

effect of said policy upon the constitutional and civil rights of plaintiff, DANGELO, and others similarly situated.

59. That Defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

60. As a result of the foregoing, plaintiff, DANGELO, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

61. As a result of the foregoing, plaintiff, DANGELO, demands judgment against defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

62. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "61," inclusive, as though each were set forth fully at length herein.

63. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including defendants, P.O. CRISTIANO, with knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and therefore, were unfit to be a police officer.

64. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including defendants, P.O. CRISTIANO, with knowledge that said police officer lacked the department to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

65. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including defendants, P.O. CRISTIANO, with knowledge that said police officer lacked

the experience to be employed by the aforementioned defendant, and therefore, was unfit to be a police officer.

66. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including defendants, P.O. CRISTIANO, with knowledge that said police officer had vicious propensities and was therefore unfit to be a police officer.

67. As a result of the foregoing, plaintiff, DANGELO, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

68. As a result of the foregoing, plaintiff, DANGELO, demands judgment against defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

69. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “68,” inclusive, as though each were set forth fully at length herein.

70. On February 24, 2017, defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against plaintiff, DANGELO, by filing an accusatory instrument, without probable cause and in bad faith.

71. Plaintiff had not committed any illegal acts.

72. Plaintiff had not given Defendants, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts hereinafter complained of.

73. Defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed or incomplete.

74. As a result of the foregoing malicious prosecution, plaintiff, DANGELO, suffered and continues to suffer, substantial and permanent damages.

75. Said malicious prosecution caused plaintiff, DANGELO, to sustain severe emotional distress, emotional disturbances, humiliation and damage to his reputation, including the stigma of having a criminal record.

76. As a result of the foregoing, plaintiff, DANGELO, demands judgment against defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

77. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “76,” inclusive, as though each were set forth fully at length herein.

78. Defendants, their agents, servants and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have used under similar circumstances.

79. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiff, DANGELO; the assault and battery committed by defendants against plaintiff, DANGELO; the intentional striking of the plaintiff, thereby causing him physical injury, pain and suffering; the violation of plaintiffs civil and constitutional rights; the malicious prosecution of plaintiff, DANGELO; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the

defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff, DANGELO.

80. As a result of the foregoing, plaintiff, DANGELO, demands judgment against defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

81. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “80,” inclusive, as though each were set forth fully at length herein.

82. Defendants' conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

83. Defendants' acted with the desire to cause plaintiff, DANGELO, mental distress and physical distress and pain or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

84. Defendants acted with utter and reckless disregard of the consequences of their actions.

85. As a result of the foregoing, plaintiff, DANGELO, has sustained severe and debilitating physical, emotional, and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

86. As a result of the foregoing, plaintiff, DANGELO, demands judgment against defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION

87. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “86,” inclusive, as though each were set forth fully at length herein.

88. Upon information and belief, Defendant THE CITY OF NEW YORK, through other police officers who are unknown at this time, by their conduct and under color of state law, it is believed that these officers had opportunities to intercede on behalf of plaintiff DANGELO to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

89. As a direct and proximate result, Plaintiff suffered the injuries and damages described above.

90. As a result of the foregoing, plaintiff, DANGELO, demands judgment against defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN NINTH CAUSE OF ACTION

91. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “90,” inclusive, as though each were set forth fully at length herein.

92. On February 24, 2017, plaintiff, DANGELO, was a lawful pedestrian outside of 461 East 185th Street, Bronx, NY, in the city of New York, State of New York.

93. On February 24, 2017, the aforesaid motor vehicle was negligently operated by defendant, CRISTIANO, in that he drove the motor vehicle at a high rate of speed onto the sidewalk, and by failing to appreciate what was there to be seen, namely the pedestrian, and came into contact with the plaintiff, DANGELO, at the subject location.

94. As a result of the aforesaid contact, plaintiff, DANGELO, suffered severe and permanent personal injuries.

95. The above occurrence and the results thereof were in no way due to any negligence on the part of plaintiff, DANGELO, contributing thereto, but were caused wholly and solely by the negligence of the defendants in the ownership, operation, management, maintenance and control of the aforesaid motor vehicle.

96. Plaintiff, DANGELO, sustained a serious injury as defined by §5102(d) of the Insurance Law of the State of New York, and has sustained loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

97. As a direct and proximate result, Plaintiff suffered the injuries and damages described above.

98. As a result of the foregoing, plaintiff, DANGELO, demands judgment against defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CRISTIANO in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

99. That by reason of the foregoing, plaintiff, DANGELO, was severely injured and damaged, sustained personal injuries, bruises, contusions, trauma, mental distress, and other injuries; his civil rights were violated and he sustained medical expenses. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time

and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

100. Plaintiff DANGELO suffered a deprivation of his civil rights and liberty, was falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against him, beaten, battered, assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, was falsely imprisoned without judicial process, loss of reputation in the community, loss of self-esteem, fear and anxiety as a result of this incident.

101. Plaintiff, DANGELO, felt grave fear and intimidation for his safety and wellbeing by virtue of the intentional, deliberate and malicious acts of the Police Officers.

102. Plaintiff was deprived of his freedom and liberty.

103. As a result of the aforementioned, Defendants violated the rights of Plaintiff, DANGELO, secured to him under the 8th Amendment and 14th Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

104. Plaintiff, DANGELO, was caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

105. Defendants failed to protect plaintiff, DANGELO, while he was in custody thereby causing him to sustain severe and permanent injuries, pain and suffering.

106. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

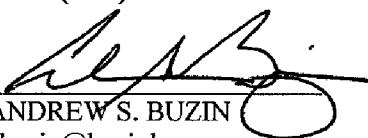
107. As a result of the aforesaid, plaintiff, DANGELO, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, FRANKLIN DANGELO a/k/a JOSE BURGOS respectfully demands judgment against defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and P.O. CRISTIANO (Tax Registry No. unknown at this time), and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
January 2, 2018

Yours, etc.
BUZIN LAW, P.C.
Attorneys for Plaintiff
111 Broadway, Room 1204
New York, NY 10006
Tel: (646) 470-4878
Fax: (347) 736-9490

By:


ANDREW S. BUZIN
abuzin@buzinlaw.com

ATTORNEY'S VERIFICATION BY AFFIRMATION

ANDREW S. BUZIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of BUZIN LAW, P.C., attorneys of record for plaintiff. I have read the annexed

SUMMONS & VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff resides outside of the county wherein your affirmant maintains offices.

Dated: New York, New York
January 2, 2018

By:


ANDREW S. BUZIN
abuzin@buzinlaw.com

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

ANDREW S. BUZIN, an attorney duly admitted to practice in the Courts of the State of New York, states:

That I am a member of BUZIN LAW, P.C., attorneys of record for plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a) and after performing an inquiry reasonable under the circumstances that the within summons and verified complaint and its respective contentions are not frivolous as set forth in and defined under 22 NYCRR 130-1.1(c).

Dated: New York, New York
 January 2, 2018

By:


ANDREW S. BUZIN
abuzin@buzinlaw.com